NATIONAL ARCHIVES LAW

Arrangement of Sections

1. Short title.
2. Date of operation.
3. Department of National Archives.
4. Appointment of officers.
5. Official seal.
6. National Archives Advisory Council.
7. Functions of the Advisory Council.
8. Powers and duties of the Director.
9. Selection and transfer of public records to the National Archives.

9A. Presidential Archives Division and Reference Service.

10. Procedure relating to documents where public office is to be closed down.
11. Records of Commissions to be transmitted to the Director.
12. Documents and manuscript in private possession.
13. Transmission of certain copies or specimens of certain publications to the Director.
14. Prohibition of export of certain documents and manuscripts from Sri Lanka.
15. Authentication of copies and extracts.
16. Regulations.
17. Penalties.
18. Records maintained under certain written laws but transferred to the National Archives to be maintained under those written laws.
19. Savings in the case of certain records.
20. This Law not to affect the operation of the national Museums Ordinance.
21. Copies of books and newspapers to be deposited at the National Archives.
22. Deposit in the national Archives of public and private records received for permanent preservation.
23. Temporary transfer of records from National Archives.
24. Interpretation.

SCHEDULES

48 of 1973,
5 of 1976,
30 of 1981,
12 of 2005.

A LAW to provide for the establishment of a Department of National Archives; to provide for the transfer of public records to the national archives; to make better provision for the custody and preservation of public archives and public records; and for matters incidental thereto or connected therewith.

[Date of Commencement: *1st March, 1974*]

1. Short title.

This Law may be cited as National Archives Law.

2. Date of operation.

This Law shall come into operation on such date as the Minister may appoint by Order published in the *Gazette*.

3. Department of National Archives.

A Department known as the Department of National Archives is hereby established.

4. Appointment of officers.

(1) There shall be appointed—

(*a*) a person by name or by office to be or to act as the Director of National Archives; and

(*b*) such other officers and servants as may be necessary for the purposes of this Law.

(2) Every person holding any office in the Department of National Archives on the day immediately preceding the date on which this Law comes into operation shall as from the date on which this Law comes into operation be deemed to hold the same office in the Department of National Archives established under this Law.

(3) All officers and servants appointed for the purposes of this Law shall be deemed to be public servants within the meaning and for the purposes of the Penal Code.

5. Official seal.

(1) There shall be an official seal of the National Archives of a design approved by the Minister and such seal shall be judicially noticed.

(2) The seal of the National Archives shall be kept in the custody of the Director and may be used by him or by any officer authorized by him in that behalf for the purposes of the National Archives.

6. National Archives Advisory Council.

(1) There shall be established a Council to be called the National Archives Advisory Council (hereinafter referred to as the "Advisory Council") which shall consist of the Director as an *ex-officio* member and not less than five or more than seven other persons appointed by the Minister as members thereof.

(2) The Director shall be the Chairman of the Advisory Council and any officer nominated by the Minister shall function as secretary thereof.

(3) Every member of the Advisory Council other than the Director shall, unless he earlier vacates office or is removed by the Minister, hold office for a period of three years from the date of his appointment. Any member vacating office by effluxion of time shall be eligible for reappointment.

(4) The Minister may remove any member from office, other than the Chairman, without assigning any reason therefor.

(5) Meetings of the Advisory Council shall be summoned by the Director whenever he may deem it necessary, so however that a meeting of the Advisory Council shall be summoned by him, once at least in every calendar year or whenever he is required so to do by the Minister.

[S 6(5) am by s 2 of Act 30 of 1981.]

(6) Any member of the Advisory Council who, without leave of the Council first obtained, fails to attend any three consecutive meetings of the Council shall be deemed to have vacated the office of member.

7. Functions of the Advisory Council.

The functions of the Advisory Council shall be to advise the Minister on all matters relating to the location, preservation and the use of public archives, the custody and transfer of public records,

inspection and preservation of documents and manuscripts of historical or cultural or literary value in private possession, inspection by members of the public of public archives, editing and publishing of public archives and private manuscripts.

8. Powers and duties of the Director.

(1) Subject to the direction and control of the Minister, the Director shall have charge of the National Archives and of the public archives deposited therein and in addition to the specific functions conferred or imposed on him by this Law, he shall take all such measures as are necessary for the conservation of public archives.

(2) Subject to the provisions of this Law and any regulations made thereunder, the Director or any other officer of the National Archives authorized by him, shall have the power to do all such things as appear to him to be necessary or expedient for the purpose of the efficient administration of this Law and may, in particular—

(*a*) make available and publish lists, indices, guides, inventories, calendars, texts, translations and such other things as may be necessary as aids to the public archives in his custody;

(*b*) subject to such terms and conditions, if any, on which any records or manuscripts are transferred to or acquired by the National Archives, produce, edit, print or make any other public use of any public archives in his custody;

(*c*) provide for the restoration and conservation of public archives in a suitable manner and make photographic reproductions or duplicate copies of any public archives where necessary;

(*d*) produce or cause to be produced for inspection by any individual, any public archives open to public inspection;

(*e*) acquire by purchase, donation, bequest, contract, or otherwise or take on loan, any record, manuscript or document or any other material which, in his opinion, should be deposited in the National Archives for permanent preservation;

(*f*) examine any record or any other manuscript or document containing references to Sri Lanka or which had its origin in Sri Lanka but lying outside Sri Lanka, with a view to securing either on loan or by purchase, the original or any copy thereof;

(*g*) examine any collection of records or printed material in private possession for purposes of listing and recording and render such technical aid or assistance as may be necessary for the conservation and preservation of such records or printed material; and

(*h*) hold public exhibitions or expositions of any class or description of public archives, private documents, manuscripts or printed material deposited in the National Archives, either in the premises of the National Archives or elsewhere.

(3) The Director may in writing delegate any of his powers and functions under this Law to any officer of the National Archives.

9. Selection and transfer of public records to the National Archives.

(1) The Director shall have access to any place of deposit of public records and shall have the power to examine such records with a view to listing or collecting information therefrom or to taking such steps as are necessary for their transfer to the National Archives for permanent preservation.

(2) It shall be the duty of the responsible officer of any public office or any other person for the time being having custody of any public records—

(*a*) to afford the Director or any other officer authorised by him in writing all facilities for the examination and selection of such public records for permanent preservation and for the transfer of such records to the National Archives;

(*b*) to keep in safe custody in such office any class or description of public records selected by the Director or by such other officer pending the transfer of such records to the National Archives;

(*c*) to perform such duties in connection with the selection and listing of such public records in his custody for transfer to the National Archives as may be required by the Director;

(*d*) to transfer any record, being a record not less than twenty-five years from the date of its creation, as is required by the Director to be transferred to the National Archives for permanent preservation:

[S 9(2)(*d*) subs by s 3 of Act 30 of 1981.]

Provided, however, that the transfer of any public records to the National Archives may be temporarily deferred and such records retained in the office of origin for administrative or other purposes for such period as may be agreed upon by the responsible officer of such public office and the Director, and in every such case a list of the records so retained shall be transmitted to the Director by the responsible officer;

Provided further that the responsible officer transferring any public records which he may consider to be of a confidential or secret nature or which contain any other information which should not be divulged to the public may specify conditions subject to which such records shall be kept in the National Archives or shall be made available for public inspection, and it shall be the duty of the Director to comply with such conditions.

9A. Presidential Archives Division and Reference Service.

Notwithstanding anything in any other provision of this Law—

(*a*) it shall be the duty of the Secretary to the President of the Republic of Sri Lanka, to transfer to the National Archives at the expiration of the term of office of a President, all public records and any other printed matter, in the office of the President of Sri Lanka.

(*b*) it shall be the duty of the Director—

(i) to deposit in the Presidential Archives Division—

(*a*) all public records and printed matter transferred to the National Archives under paragraph (*a*); and

(*b*) all such papers and documents, news items, magnetic tapes, discs, photographs or any other materials relating to any event in the official or personal life of a President or past President of the Republic as are received, by donation or otherwise, by the National Archives; and

(ii) to establish a reference service utilising the public records, printed matter, documents and materials referred to in subparagraph (i); and

(iii) to submit to the President reports based on any such public records, printed matter, documents and materials as are referred to in subparagraph (i), when required to do so by the President.

[S 9A ins by s 4 of Act 30 of 1981.]

10. Procedure relating to documents where public office is to be closed down.

Where any public office is due to be closed down or wound up, the responsible officer of such public office shall transmit to the Director a complete list of all public records in that office and shall make arrangements to deposit in the National Archives such records as the Director may select or require for permanent preservation in the National Archives.

11. Records of Commissions to be transmitted to the Director.

It shall be the duty of the Secretary of any Commission of Inquiry appointed under the Commissions of Inquiry Act or any committee of inquiry appointed by a minister to deposit all records relating to such Commission or Committee, as the case may be, at the National Archives within three months of the rendering of the final report of such Commission or Committee.

12. Documents and manuscript in private possession.

(1) A private individual or the Chief Executive Officer of any institution in possession of any manuscript or document, over fifty years old, being a manuscript or document, of historical, cultural, literary, economic, or scientific value or which is otherwise of national importance shall notify the

Director of the existence of such document or manuscript, and in the event of a change of ownership or possession of such document or manuscript shall notify the Director, within a period of three months of such change of ownership or possession, the name and address of the new owner or possessor thereof.

[S 12(1) subs by s 5 of Act 30 of 1981.]

(2) Such individual or executive officer shall afford the Director all facilities to inspect such manuscript or document.

(3) Such individual or executive officer shall if agreed upon by the Director, deposit at the National Archives such manuscript or document either on a permanent or temporary basis, and may specify the conditions subject to which such manuscript or document shall be made available for public inspection or extracts or copies therefrom shall be taken for publication or for any other purpose.

13. Transmission of certain copies or specimens of certain publications to the Director.

(1) It shall be the duty of—

(*a*) the responsible officer of any public office to transmit to the Director a copy of every annual report, statement of accounts or any other publication, whether printed or otherwise, and whether intended for sale or distribution to the public or intended for circulation in secret or for circulation only amongst officials, issued by such office, within thirty days of such issue;

[S 13(1)(*a*) subs by s 6 of Act 30 of 1981.]

(*b*) the Postmaster-General to transmit to the Director a specimen of each new postage stamp, first-day cover, postal order form, money order form, aerogramme and post card issued by the Postmaster-General, within thirty days of such issue;

(*c*) the Governor of the Central Bank of Sri Lanka to transmit to the Director a cancelled specimen of every new denomination of currency note and a specimen of every new coin issued by the Central Bank, within thirty days of such issue;

(*d*) the Surveyor-General to transmit to the Director a copy of every map, plan, chart or other publication issued by the Surveyor-General for sale to the public, within thirty days of such issue; and

(*e*) the candidate for any election or by-election of a member of Parliament or of any local authority to transmit to the Director a copy of any election literature issued by or on behalf of such candidate for public circulation, within thirty days of such issue.

(2) For the purposes of subsection (1) "election literature” means any statement of policy, handbill, notice, placard, poster, leaflet, book, picture, photograph, map, drawing or sketch, handwritten, printed, cyclostyled or produced in any other way on paper or in any other material by or on behalf of a candidate.

14. Prohibition of export of certain documents and manuscripts from Sri Lanka.

(1) No person shall except on the authority of a licence issued in that behalf by for, export out of Sri Lanka any public record, document or manuscript or any other printed matter, being a public record, document, manuscript or printed matter which is over fifty years old and which is of a historical or cultural or literary or economic or scientific value or is otherwise of national importance.

[S 14(1) am by s 7 of Act 30 of 1981.]

(2) The Director may in his discretion refuse to issue a licence if he considers that such record, document or manuscript is of such historical, cultural, literary, economic or scientific value or is otherwise of national importance that its export will not be in the national interest.

[S 14(2) am by s 7 of Act 30 of 1981.]

(3) Any person aggrieved by the refusal of the Director to issue any licence under this section may appeal against such refusal to the Minister within fourteen days of the communication of such refusal and the decision of the Minister thereon shall be final and conclusive.

15. Authentication of copies and extracts.

A copy of or an extract from any public archives or any private document or manuscript deposited in the National Archives purporting to be duly certified as true and authenticated by the Director or any other officer authorised by him in writing for the purpose and having impressed thereon the official seal of the National Archives, shall be admissible in evidence in any proceeding in any court in like manner and to the like extent as the original document or manuscript would have been admissible.

16. Regulations.

(1) The Minister may make regulations for any one or more of the purposes hereinafter prescribed—

(*a*) selection of public records and private documents and manuscripts for permanent preservation, their transfer to and deposit in the National Archives and the measures to be taken for their effective preservation in the National Archives;

(*b*) temporary deposit of any specified class or description of public records at places other than the National Archives pending their transfer to the National Archives;

(*c*) care and custody of public records in Government Departments and other institutions;

(*d*) public access to the public archives and the terms and conditions subject to which public archives or any specified class or description of public archives are open to inspection by the members of the public;

(*e*) prohibition or restriction of the disclosure of information obtained by the public from public archives;

(*f*) maintenance of secrecy by officers of the National Archives in respect of any class or description of public archives in respect of which secrecy is required to be maintained by or under any written law;

(*g*) purchase from private individuals or organisations of manuscripts and documents and other printed matter of historical or cultural or literary or economic or scientific value or which are otherwise of national importance for permanent preservation in the National Archives;

[S 16(1)(*g*) am by s 8 of Act 30 of 1981.]

(*h*) destruction of valueless records and documents in public offices and preparation of schedules therefor;

(*i*) holding of exhibitions and expositions of public archives.

(2) Every regulation made by the Minister shall be published in the *Gazette* and shall come into operation on the date of such publication or on such later date as may be specified in the regulation.

[S 16(2) subs by s 8 of Act 30 of 1981.]

(3) Every regulation made by the Minister shall, as soon as convenient after its publication in the *Gazette*, be brought before Parliament for approval. Any regulation which is not so approved shall be deemed to be rescinded as from the date of disapproval but without prejudice to anything previously done there under.

[S 16(3) ins by s 8 of Act 30 of 1981.]

(4) Notification of the date on which any regulation made by the Minister is so deemed to be rescinded shall be published in the *Gazette*.

[S 16(4) ins by s 8 of Act 30 of 1981.]

17. Penalties.

(1) Any person who knowingly defaces, marks on, mutilates, or causes damage to any record, manuscript or document deposited in the National Archives or removes without authority, any such record, manuscript or document or who destroys any public record otherwise than in accordance with the provisions of this Law or any regulation made thereunder or who contravenes any provision of this

Law or any regulations made thereunder shall on conviction, be liable to rigorous imprisonment for a term not exceeding three months or to a fine not less than two thousand rupees and not exceeding five thousand rupees or to both such imprisonment and fine.

[S 17(1) subs by s 9 of Act 30 of 1981; am by s 5 of Act 12 of 2005.]

(2) Any offence under this section shall be triable by a Magistrate's Court notwithstanding the limitation of its ordinary jurisdiction.

18. Records maintained under certain written laws but transferred to the National Archives to be maintained under those written laws.

When a public record or document required to be maintained under any written law is transferred to or deposited in the National Archives for permanent preservation under the provisions of this Law, such record or document shall be deemed to be maintained in the National Archives under the provisions of the first-mentioned written law, and accordingly, the provisions of that written law shall apply to and in relation to such document or manuscript.

19. Savings in the case of certain records.

Nothing in the preceding provisions of this Law shall be deemed to affect any public record which is less than one hundred years old and which is maintained under any enactment specified in the First Schedule hereto.

20. This Law not to affect the operation of the National Museums Ordinance.

Nothing in this Law shall be deemed to affect the operation of the National Museums Ordinance.

21. Copies of books and newspapers to be deposited at the National Archives.

One copy of every book which has been delivered to the Registrar under section 2 of the Printers and Publishers Ordinance and the signed copy of every newspaper which has been delivered under section 7 of the Newspapers Ordinance to the Registrar, during any period prior to the 1st day of March, 1974, shall be deemed for all purposes to be a copy deposited at the National Archives for permanent preservation. Where, on and after the 1st day of March, 1974, copies of any book are delivered under section 2 of the Printers and Publishers Ordinance and the signed copy of a newspaper is delivered under section 7 of the Newspapers Ordinance to the Registrar, one copy of such book and the copy of such newspaper so delivered shall forthwith be deposited by the Registrar at the National Archives for permanent preservation.

[Amendments effected by subsections (1), (2) and (3) of section 21 of this Law to the Printing Presses Ordinance, Printers and Publishers Ordinance and Newspapers Ordinance respectively, have been incorporated in those Ordinances, and section 21(4) of this Law is reproduced as section 21.]

[S 21 am by s 3 of Law 5 of 1976.]

22. Deposit in the national Archives of public and private records received for permanent preservation.

All public and private records received for permanent preservation by the Director shall be deposited in the repositories of the National Archives.

23. Temporary transfer of records from National Archives.

Except as hereinafter provided public archives shall not be removed from the National Archives to any other place for any purpose whatsoever:

Provided however that where any public office which transmitted to the National Archives any record, document, manuscript or other thing requires the same for inspection by such office, such

record, manuscript, document or thing may be forwarded to such office by the Director for inspection and return within such period as may be specified by the Director.

24. Interpretation.

In this Law, unless the context Otherwise requires—

"Director" means the Director of National Archives and includes any Deputy Director of National Archives;

[Subs by s 11 of Act 30 of 1981.]

"local authority" includes any Municipal Council, Urban Council, Town Council, or Village Council;

"manuscript" means any handwritten document made of paper, ola, copper, silver, gold, or other material except granite;

"National Archives" means the Department of National Archives established under this Law;

"Presidential Archives Division" means a branch office and repository of the National Archives referred to in section 9A;

[Ins by s 11(2) of Act 30 of 1981.]

"public archives" means all public records and any other manuscript, document or printed matter kept or deposited at the National Archives for permanent preservation;

"public office" means any office specified in the Second Schedule hereto;

"public record" or "record" means any original or copy of any manuscript, paper, letter, register, report, book, magazine, map, chart, plan, drawing, picture, photograph or any other record or part thereof either handwritten, drawn, printed or produced in any other way on paper or on any other material except granite and officially received or produced or prepared in any public office in the course of its official functions and includes any cinematograph, film, recording, tape, disc or production in any other media received in any public office;

"printed matter" means any book, magazine, leaflet, newspaper, or any other paper containing information printed by any mechanical or by any other process;

"responsible officer" with reference to any public office, means the head of that office or the officer for the time being discharging the duties and functions of the head of that office.

SCHEDULES

FIRST SCHEDULE

[SECTION 19]

Adoption of Children Ordinance.
Births and Deaths Registration Act.
Registration of Deaths (Emergency Provisions) Ordinance.
Marriage Registration Ordinance.
Kandyan Marriage and Divorce Act.
Kandyan Succession Ordinance.
Muslim Marriage and Divorce Act.
Foreign Marriage Ordinance.*
Registration of Documents Ordinance.
Sannases and Old Deeds Ordinance.
Registration of Old Deeds and Instruments Ordinance.
Land Registers (Reconstructed Folios) Ordinance.
Registrars' Proceedings Validation Ordinance.

Powers of Attorney Ordinance.

[* See List of Enactments omitted from the Revised Edition.]

SECOND SCHEDULE

[SECTION 24]

PUBLIC OFFICE

Office of the President of the Republic of Sri Lanka.

Office of the Cabinet of Ministers.

Office of the Secretary-General of Parliament.

Office of any Minister of the Cabinet.

Office of any Government Department.

Office of any court of law.

Office of the Army, Navy or Air Force.

Office of any Ambassador, High Commissioner or any other Diplomatic Representative of Sri Lanka and situated outside Sri Lanka.

Office of any Local Authority.

Offices of any of the Universities of Sri Lanka.

Office of any Public Corporation established under any enactment, being a corporation whose capital is partly or wholly provided by the Government.